

Multiple Choice (10 marks)

1. The judicial branch of the United States government has the power to _____ the law.
 - (a) interpret
 - (b) make
 - (c) enforce
 - (d) override
2. Which of the following purposes does the 'internal point of view' play in Hart's concept of law?
 - (a) It distinguishes social rules from mere group habits.
 - (b) It defines the judicial function.
 - (c) It illustrates the authority of the legislature.
 - (d) It stresses the relationship between law and justice.
3. What is the fundamental premise of monist theory?
 - (a) Monism posits that international law is superior to domestic laws
 - (b) Monism posits that international and domestic law are part of the same legal order
 - (c) Monism posits that domestic laws are superior to international law
 - (d) Monism posits that domestic and international law never clash
4. Critical Legal Studies (CLS) is often compared to (or with) American realism. Which of the following statements is inaccurate?
 - (a) Both are concerned with the 'law in action.'
 - (b) Both are anti-formalist and sceptical
 - (c) Both adopt a liberal ideology.
 - (d) Both attempt to demystify the law.
5. Who was the first jurist to study comparative aspect of law?
 - (a) Savigny
 - (b) Austin
 - (c) Kelsen
 - (d) Maine

True / False (10 marks)

Answer True or False

6. True or False: The postmodernist project seeks to defend Enlightenment values and their emphasis on reason and individual rights.
7. True or False: Civil law is the body of law that establishes rights between individuals and provides remedies for violations of those rights.
8. True or False: Fuller's concept of law aligns with a positivist view, asserting that law is separate from morality and ethics.
9. True or False: Treaties always take precedence over customary international law in all circumstances.
10. True or False: It is impossible to calculate all the consequences of one's acts, challenging Bentham's felicific calculus.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Hart's critique of Fuller's argument regarding the validity of Nazi law, focusing on his perspective on legal enactment and its implications for legal theory.
12. Discuss the significance of the 'margin of appreciation' doctrine as established in the Handyside v UK (1976) case and its implications for the European Court of Human Rights' jurisprudence.

End of Paper